

MAINS MASTER PROGRAM (MMP) 2024

POLITY - 1

INDIAN CONSTITUTION—HISTORICAL UNDERPINNINGS, EVOLUTION, FEATURES, AMENDMENTS, SIGNIFICANT PROVISIONS AND BASIC STRUCTURE.

Historical Underpinnings & Evolution

a) Company Rule

- Centralisation
- Commercial & Administrative to purely Administrative
- Separation legislative & Executive functions [Charter Act, 1833 & Charter Act, 1853] – beginning of parliamentary control
- Merit based recruitment
- Beginning of codification of laws [Law Commission]

b) Crown Rule

- Gradual development of parliamentary system [Legislative council expansion – both membership & functions]
- Portfolio system
- Indirect to Direct elections [Adult Suffrage]
- Decentralisation & Provincial Autonomy
- Bicameralism
- Reserve Bank of India
- Codification of laws
- Federal & Provincial Public service commissions
- Administrative Structure
- Separate Electorate [Rejected and system of reservation in the constitution]
- Residuary Powers [Viceroy to Parliament]

Questions

1. Do you think the historical constitutional developments during the British rule influenced the making of the Indian Constitution by the constituent assembly? Substantiate your viewpoint with suitable Illustrations [Marks 15]
2. Do you think the GoI Act, 1935 provided for a federal constitution? Comment [10 Marks]

Features & Significant Provisions

- Philosophical Themes
- Fundamental Rights
- Citizenship Act, 2019 & Rules 2024

- Uniform Civil Code
- Article 370

Philosophical Themes – Transformative Constitution, Constitutional & Social Morality, Preamble

a) Transformative Constitution

- “A transformative constitution is one that seeks to bring about a fundamental change in the way society is organized, by addressing issues of inequality and social injustice that have historically been neglected.” [Professor Upendra Baxi]
- Idea that the **constitution can transform** the society.
- Transformative **Features**
 - Citizenship
 - Universal Adult Suffrage
 - Fundamental Rights – **Vertical & Horizontal Effect**
 - Checks & Balances – **Judicial Review**
 - Case Laws – ‘**Decriminalising Sec. 377 of IPC**’ [Navtej Singh Johar, 2018]; **Sabarimala Case, 2018**; ‘**Decriminalization of Adultery**’ [Joseph Shine, 2018]; ‘**Right to be recognised as third gender**’ [NALSA case, 2014]
- Way Forward – Not **textualist but purposive approach** from Judiciary.

Questions

1. The Constitution of India is a transformative document designed for a progressive society. Do you agree? Explain your viewpoint with suitable Illustrations [15 Marks]
2. The Constitution of India was not just a founding document, it had a radically transformative vision. Comment [10 Marks]

b) Constitutional & Social Morality

- Constitutional Morality **entails adherence to constitutional values & norms** in a democratic system.
- **Deep rooted** in Indian Constitution
 - **Preamble** – Justice, Liberty, Equality & Fraternity
 - **Fundamental Rights** – Rule of Law & Constitutional Remedies
 - **DPSP** – Guidelines to State
 - **Judicial Review**
- Supreme Court
 - NCT Delhi Case, 2018
 - Navtej Singh Johar, 2018
 - Joseph Shine, 2018
 - Justice Puttaswamy, 2017
- Social Morality entails **adherence to practices approved by social values & norms.**

➤ **Illustrations – Social Morality**

- Khap Panchayats & Honour Killings
- Non-acceptance of live-in-relationship [**Kiran Rawat Vs State of U.P**]

Questions

1. Constitutional morality, even if there is tension with existing social morality should not be rejected. Comment [15 Marks]
2. 'Constitutional Morality' is rooted in the Constitution itself and is founded on its essential facets. Explain the doctrine of 'Constitutional Morality' with the help of relevant Judicial Decisions. [10 Marks]

Fundamental Rights – Right to Equality, Freedom of speech & expression, right to life & personal liberty, Religious Rights

1) Right to Equality – Reservation

Reservations

- Reservation is a **social justice** measure which enables the **SEBC, SC, ST's & other weaker** sections **equal opportunity** especially in the domain of education & public employment.
- **Constitutional Provisions** – Art. 15(4), Art.15 (5), Art. 15 (6), Art.16 (4), Art.16 (4A), Art. 16(4B), Art.16(6)
- **Supreme Court Judgements**
 - **Champakam Dorairajan case, 1951** – Declared **unconstitutional reservation given to Backward classes, SC & ST in educational institutions** by State of Madras under **Art. 46**
 - **Indra Sawhney case, 1992** – upheld **reservation given to backward classes in public employment** with certain caveats
 - ✓ 50% rule in reservation
 - ✓ Reservation only to non-creamy layer
 - ✓ No reservation in promotions
 - **P.A Inamdar Vs State of Maharashtra, 2005** – Struck down reservation in private educational institutions.
 - **Nagaraj Case, 2006** – Upheld validity of reservation in promotions with conditions
 - ✓ Quantifiable data on backwardness
 - ✓ Inadequacy of representation
 - ✓ Administrative efficiency not to be compromised
 - **Ashok Kumar Thakur Case, 2008** – Non-creamy layer to apply to reservation in Private educational institutions.

- **Jarnail Singh case, 2018** – Upheld Nagaraj without need to provide quantifiable data on backwardness but at the same time excluding the **affluent** among the **SC & ST (Creamy Layer)**
- **Janhit Abhiyan case, 2022** – upheld the validity of **EWS reservation**
 - ✓ Exclusion of OBC, SC & ST is part of reasonable classification
 - ✓ Reservation on economic grounds is constitutionally valid
 - ✓ 50% rule does not apply in case of EWS & not violative of basic structure
- **Arguments in Favour of Reservation** – Historical Deprivation & Injustice; Constitutional Mandate; Inclusive Development
- **Arguments against Reservation** – Against merit, Affects efficiency & quality, Discrimination & Perpetuation, Stigmatisation & Prejudice, Political tool of populism.
- **Local Reservation in Private Jobs**
 - **Arguments against** – Violation of the constitutional provisions; fuels regional chauvinism & sons of soil doctrine; affects unity & integrity; demand supply mismatch affects efficiency; politically populist tool
 - **Arguments in favour** – State govt. responsibility to protect the interest of locals; reasonable classification u/a 14 & not violative of Art.16

Questions

1. Can reservation be used as an instrument of affirmative action to address economic weakness? Justify your views with relevant reasons. [10 Marks]
2. Briefly comment on the constitutional developments related to reservation in promotions in public employment? Also highlight the latest decision of the Supreme Court in this regard. [10 Marks]

2) Freedom of speech & expression

- **Definition** – right of every citizen to express his views, beliefs & convictions freely without inhibitions by word of mouth, through writing, printing, picturing or in any other forms.
- **Implied rights** – Freedom of the press, right to remain silent, right against unauthorised telephone tapping, Right to Information etc.
- Rights are **reasonable but not absolute**
- **Reasonable restrictions** – Public Order, Contempt of the court, Incitement to an offence, Defamation etc.
- Provisions like – **Hate Speech, Sedition, Criminal Defamation** etc.

a) Hate Speech

- Hate speech is an **incitement to hatred** towards a group of people who vary in their identity by virtue of race, gender, sexual orientation, or other characteristics
[Law Commission of India]

- Hate speech is an effort to **marginalize individuals** based on their membership to a group. [**Pravasi Bhalai Sangathan Case, 2014 – Supreme Court of India**]
- **Provisions** – Sec. 153A, Sec.295A, Sec. 505 of IPC; Sec. 123 of RPA, 1951 etc.
- **Causes for Hate Speech**
 - **Polarisation of society** for political reasons
 - Way for **politicians to be in limelight**
 - Lack of **legal definition** for hate speech adds to its ambiguity
 - Lack of **executive enforcement**
 - Lack of **judicial activism** in the domain of hate speech
 - Lack of **political will** to bring reforms [LCI 267th report]
- **Consequences or Implications**
 - Marginalisation & Prejudice
 - Discrimination & violence
 - Threat to **constitutional values – Secularism & Fraternity**
- **Way Forward**
 - Effective **implementation of laws & proactive role** of judiciary [contempt for inaction]
 - **Law Commission Report (267th) & Standing committee report (189th)**
 - ✓ Sec.153C – Prohibiting incitement to hatred
 - ✓ Sec.505A – causing alarm, fear, or provocation to violence in certain cases
 - ✓ Amendment to ITA, 2000 [online hate speech]

Question

1. As per the NCRB report for 2022 there is 45% increase in the cases of hate speech. What are the reasons do you think for such increase in the incidence of hate speech in India? Also suggest suitable measures to tackle them. [10 Marks]
- b) Sedition Vs Provisions of Bharatiya Nyaya Sanhita Act, 2023**
- Sec.124A replaced with Sec.152
 - **More stringent punishment** – Imprisonment or fine to Imprisonment with fine
 - **Hatred, Contempt or Disaffection Vs ‘Sovereignty, Unity & Integrity of India’**
 - **Specific targets** – Secessionism & Separatism
 - **Wider Definition** – covers electronic communication & use of financial means endangering sovereignty, unity & integrity of India.
 - **Criticisms of the Act**
 - More **stringent** punishment
 - Wider **discretion** to law enforcement agency
 - **Incitement to violence** is not a precondition to make charges

Questions

1. Do you think the criticism to the sedition law has been taken care in the new Bharatiya Nyaya Sanhita Act, 2023 which replaces the colonial era Indian Penal Code? Critically Analyse [15 Marks]

c) Digital Media regulation Vs Fundamental right to free speech

- **Information Technology Act, 2000** empowers government to **formulate rules to regulate** digital media platforms from issues like **hate speech, fake news, misinformation etc.**
- **Regulation covers** – Social Media Intermediaries, streaming services & news publishers etc.
- **IT Rules under the Act**
 - Periodic updation on rules, terms & conditions to users
 - Block access in case of unlawful or misinformation
 - Minimum record maintenance (180 days)
 - **Significant social media intermediaries** (≥ 50 lakhs users)
 - ✓ Chief compliance officer
 - ✓ Resident grievance officer
 - ✓ Nodal person for co-ordination with law enforcement agencies.
 - ✓ Monthly compliance report
 - ✓ Identification of 'first originator of information' in certain cases
 - Grievance appellate committee appointed by the govt.
 - **Fact check unit** (Removal of **safe harbour** protection got non-compliance)
- Criticism to Govt. rules
 - **Ambiguous language** allows **excess censorship**
 - Suppress **legitimate dissent & political criticism**
 - Undermine open dialogue essential for vibrant democracy
 - Hinder **artistic creativity & expression**
 - Smaller digital platforms may **face financial & logistical challenges**
- Arguments in Favour
 - Right to **free speech is not absolute**
 - Hate speech, misinformation & fake news may **provoke hatred & violence**
 - Legitimate responsibility of the govt.
- Way Forward
 - While regulation is required but should not amount to overregulation
 - **Due procedure** to be followed before blocking or removing content [**Shreya Singhal Case, 2015**]
 - Role of govt., civil societies & right activist are crucial

Questions

1. There is a need to maintain a delicate balance between regulation and exercise of fundamental right to free speech. Examine this statement in the context of criticism surrounding India's information technology (Intermediary Guidelines & digital media ethics code) rules 2021.
2. Do you agree with the view that, while the intent behind the IT rules 2021, is to curb the rampant spread of misinformation, hate speech & fake news, this ambitious attempt has raised significant questions about its potential impact on freedom of speech & expression?
3. What do you understand by the concept "freedom of speech and expression"? Does it cover hate speech also? Why do the films in India stand on a slightly different plane from other forms of expression? Discuss.

3) Right to Life & Personal Liberty

- **Art.21** – guarantees no person shall be deprived of his right to life or personal liberty except according to procedure established by law.
- **Maneka Gandhi case, 1978** – 'procedure established by law' will have same effect as that of 'due process of law'
 - Procedure that deprives the right to life or personal liberty should **be just, fair & reasonable**.
 - Right to life & personal liberty is protected not only **against arbitrary executive but also legislative actions**.

a) Widening ambit of individual privacy & decisional autonomy

- **Right to Privacy** – Right to be let alone from the intrusions of the state [**Justice K.S. Puttaswamy case, 2017**]
- Privacy is **integral to dignity** of an individual
- **Dimensions of Privacy**
 - Data Privacy
 - Bodily & decisional autonomy
- Examples – Preservation of personal intimacies, sanctity of family life, marriage, procreation, sexual orientation etc.
- Privacy Rights – **Negative & Positive**
- Privacy can be **reasonably restricted**
- Supreme Court – widening the ambit of individual privacy & decisional autonomy
 - **Right to choose a life partner of one's choice** [Hadia & Shakti Vahini]
 - **Decriminalising homosexuality** [Navtej Singh Johar]
 - **Right to bear a child whether married or unmarried** [Supreme Court, September 2022]
 - **Right to medically terminate Pregnancy whether married or unmarried** [Supreme Court of India]

Question

1. What do you understand by 'right to privacy'? Has the Supreme Court expanded the ambit of right to privacy in the recent past? Cite relevant case laws to justify your answer. [15 Marks]

b) Right to life in expanding scope of environmental rights

- **M.C Mehta Vs Uoi, 1987** – 'Polluters pay principle'
- **Subhash Kumar Case, 1991** – Right to clean environment a right under right to life
- **Murali s Deora, 2001** – ban on public smoking all over India to uphold & recognise right to health life under article 21
- **Tirupur dyeing factory owners' case 2010** – obligation of the state to provide clean drinking water
- **Great Indian Bustard Case, 2024** – right to be free from adverse effects of climate change.

Question

1. "The most significant achievement of modern law in India is the constitutionalization of environmental problems by the Supreme Court." Discuss this statement with the help of relevant case laws.

c) Right to life in expanding gender equality & Justice

- **Joseph Shine case, 2018** – decriminalising adultery
- **Sabarimala case, 2018** – entry of women into the temple [10 – 50 years]
- **Vishaka case, 1997** – prevention of sexual harassment of women in workplace
- **Bodily & decisional autonomy** – right to bear child & medical abortion of child by both married & unmarried women [Supreme Court, 2022]
- **Shah Bano case, 1985** – Uniform civil code

Question

1. How far do you think article 21 has been instrumental in ensuring gender equality in India? Cite relevant case laws to support your views. [10 Marks]

d) Article 21 & expansion of various human rights jurisprudence

- **Pavement Dwellers case, 1986** – Right to Livelihood
- **Aruna Ramachandra Shanbaug, 2010** – right to die with dignity
- **Kartar Singh, 1994** – right to speedy trial
- **D.K Basu, 1997** – right against inhuman treatment during police custody & compensation for violation
- **Vishaka case, 1997** – right against sexual harassment of women at workplace
- **Justice K.S Puttaswamy** – right to privacy

Question

1. Article 21 of the Indian constitution is a source of various human rights jurisprudence. Elaborate [15 Marks]

4) Religious rights in India

a) Religious Rights

- Doctrine of essentiality - According to the Supreme Court every religion has essential as well as non-essential practices.
- Essential practices are those without which the practice of religion is not possible [Shirur Matt, 1954]
- **Rationality - Balancing religious rights Vs State intervention**
- Supreme Court cases – Hijab case, Sabarimala Case, Anand Marga case (Tandava), Instant Triple Talaq, Santhara etc.
- **Arguments in against of the Doctrine**
 - No scientific or unique methodology
 - Judges lack religious expertise
 - Against religious norms & Values (Social Morality)
 - Against religious rights guaranteed by constitution
- **Arguments in favour of the Doctrine**
 - Protects the Rights & Liberties
 - Constitutional Morality
 - Balance religious rights vs state intervention
 - Transformative constitution
- **Way Forward**
 - Matter pending before 9 judge constitutional bench
 - Standardisation of methods & elimination of discretion and arbitrariness on the part of judiciary

Question

1. What do you understand by doctrine of essentiality? Analyse the pros & cons of the doctrine [15 marks]

Citizenship Amendment Act, 2019 & Rules 2024

- **Features of the Act**
 - Illegal migrants from 3 countries (Pakistan, Afghanistan & Bangladesh) belonging to 6 religions (Hindu, Sikhs, Buddhist, Christians, Parsis & Jains)
 - **31st December 2014**(Entry)
 - Eligible to become Indian citizens
 - Exempted from criminality [Foreigners act, 1946 & Passport act, 1920]
 - Non-application in certain areas [Inner Line Permit & Schedule VI]

➤ **Rules under the Act**

- Proof of Origin country (Documents – ID, License, etc.)
- Date of Entry into India (Electricity bill, Pan Card, Insurance, Passport, Visa etc.)
- Eligibility certificate (Proof of religion – local community institution)

➤ **Criticism of the Act**

- Violation of **principle of equality**
- Against **Secular fabric** (Basic structure)
- Violation of **Assam Accord**
- **Selective Discrimination**

➤ **Arguments in favour**

- Reasonable classification
- Humanitarian law

➤ **Way forward**

- To pass the **test of reasonable classification** there must be a **reasonable nexus** between **classifications done & object sought** to be achieved.

Question

1. Critically analyse the provisions of the citizenship amendment act, 2019. [10 Marks]

Uniform Civil Code

- **What is UCC?** - Uniform Civil Code will be a set of laws that would replace the distinct personal laws regarding marriage, divorce, inheritance, adoption etc. which right now is not uniform & varies from religion to religion.

- **Example** – Hindu Marriage Act, 1955; Muslim Personal Law or Shariat Act, 1937; Christian Marriage Act, 1872 etc.

➤ **Constitutional Provisions**

- Article 44 – ‘State shall endeavor to secure uniform civil code to all its citizens
- Article 25 – Right to freedom of religion
- Article 29 – Right to preserve distinct culture
- Article 14 – Right to equality
- Article 15 – No discrimination on certain grounds
- Article 21 – Right to life and liberty

➤ **Constitutional Assembly Debates**

- Personal Laws are inseparably connected to religious beliefs & practices [Naziruddin Ahmed – Violative of Art. 25]
- Secular matters can be regulated by the state; ensuring gender justice & Unity & Integrity of the nation [K.M Munshi]
- While UCC is desirable it should remain purely Voluntary [Dr. B.R. Ambedkar]

➤ **Arguments against UCC**

- Violates religious & other rights [Article 25 & Article 29]
- Impose majority culture & practices [Hinduised code]

- No uniformity even in criminal laws
- No uniformity even with religion
- **Arguments in favour of UCC**
 - Better integration of India
 - Ensure gender justice & equality
 - Progressive in character
- **Factors that inhibit implementation of UCC**
 - Negative perception [against religious rights]
 - False Narrative [Hinduised code]
 - Lack of political will & divided ideologies
 - Diversity in religious & cultural practices & sensitivity of the subject matter
 - Practical difficulties in implementing the uniform code
- **Supreme Court**
 - Shah Bano, 1985
 - Sarla Mudgal, 1995
 - Paulo Coutinho, 2019
- **Way forward**
 - 21st law commission – incremental approach
 - Discriminatory practices, prejudices & stereotypes within religion & personal laws should be studied and amended
 - Example – Marriages, Divorce & Maintenance, fixing marriageable age, simplifying divorce procedures etc.

Questions

1. Is uniformity in matters of personal laws desirable for a nation that is as diverse as India? Discuss [15 Marks]
2. “Uniform civil code is neither necessary nor desirable at this stage”. In the light of the statement discuss the pros & cons of having a uniform civil code. [10 Marks]
3. Uniform civil code can help in better integration of India and ensure gender equality & justice. Do you agree with this view? Also discuss the factors that inhibit implementation of uniform civil code in India. [10 Marks]

Abrogation of Article 370

- **Historical Background**
 - October 1947 – ‘Instrument of Accession’
 - Defence, Communication, Foreign Affairs & Finance
 - Article 370 drafted to effect ‘instrument of accession’
- **Constitutional Provisions**
 - **Article 370(1)** – any provision of the constitution to apply by a **presidential order**
 - **Article 370(3)** – president can make the **entire provision or part of the provision inoperative**

➤ **How the government made article 370 inoperative?**

- Art. 370(1) – presidential order making application the **entire constitution** to J&K
- **President rule** in the state of J&K
- Changes to **interpretation clause** [Article 367]
 - ✓ Reference to ‘constituent assembly’ to ‘legislative assembly’

➤ Resolution introduced to **abrogate Article 370** and **J&K reorganisation bill, 2019** – parliamentary approval

➤ **Supreme Court of India**

- Article 370 is only **transitional nature** (two purpose)
 - ✓ To establish constituent assembly of J&K
 - ✓ Ease integration of J&K into India
- Process of integration **was ongoing & culminated** with exercise of power under article 370(3)
- Article 370 was merely a feature of **asymmetric federalism & not of sovereignty**
- **Unilateral power to president** under article **370(3)** after constituent assembly cease to exist
- Power **under article 3** must be exercised with **caution & cogent reasons**

Question

1. “Article 370 was only a temporary provision to ease the accession of the then princely state to the union of India at the time of internal strife & war”. Examine this statement in the light of recent supreme court judgement on abrogation of article 370. [10 Marks]

Significant Amendments & Basic Structure

Basic Structure

➤ **Background**

- Social & Economic Justice – Land Reforms; Violation of Right to property
- 1st Cons. Amd Act, 1951 – Art. 31A & Art. 31B
- Shankari Prasad case, 1951
- Sajjan Singh case, 1965
- Golaknath Case, 1967
- 24th, 25th Amendment Acts
- Kesavananda Bharati Case, 1973

➤ **What is the Doctrine?**

- The Parliament cannot use its constituent power to alter the basic structure or the essential features in the constitution.
- Implied limitation of the amending power (German Prof. Dietrich Conrod)

➤ **Positives of the Doctrine**

- Check against majoritarian & authoritarian Govt. (Adv. Suhrith Parthasarathy)
- Basic Structure acts as North Star (CJI Chandrachud)
- Prevents the parliament becoming the master to the constitution (N Palkhivala)
- Theory of Implied Limitation (Dietrich Conrod)
- Example – Raj Narain (1975); Minerva Mills (1980); Kihoto Hollohan (1992)

➤ **Negatives of the Doctrine**

- ‘Tyranny of the unelected’ – (BJP Mr. Jaitley)
- ‘anti-democratic’ and ‘counter-majoritarian’ (Sr. Adv. Raju Ramachandran)
- Against parliamentary sovereignty & democratic will of the people (VP Jagdeep Dhankar)
- Doctrine has no basis in the Constitution language
- No Unanimity among the judges

➤ **Some Facts about the Doctrine**

- 16 times amendments challenged – 7 turned down mostly partially (Judicial Review) one completely struck down (99th Cons. Amd. Act, 2014)
- Protected the basic features, foundational values & essence of the original constitution.

Question

1. Parliament’s power to amend the Constitution is a limited power and it cannot be enlarged into absolute power.” In the light of this statement explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power?